

1 Hentchel?

2 VENIREPERSON HENTCHEL: Yes.

3 MS. RASMUSSEN: Could you tell us about
4 that?

5 VENIREPERSON HENTCHEL: I should have said
6 yes to both. I work with kids who are a lot of times victims
7 of it. So I kind of build a relationship with the kids I work
8 with. So it's not personally or like friends, but like I
9 don't know if that makes sense.

10 MS. RASMUSSEN: It docs. It docs. And I'm
11 actually very familiar with TLC and want to ask you questions
12 about that. I know you are a PRTF coordinator. That was
13 listed in your form. What exactly do you do with TLC?

14 VENIREPERSON HENTCHEL: I'm a case manager
15 with the unit.

16 MS. RASMUSSEN: So you have a unit of
17 children in a PRTF that you supervise their treatment?

18 VENIREPERSON HENTCHEL: Yes. I'm a big
19 part of their communication with their treatment.

20 MS. RASMUSSEN: Okay. And I know, Mr.
21 Gadberry, you kind of shrugged your shoulders. You are in
22 association with people who have been victims or had been
23 treated for crimes of sexual abuse. Is that related to your
24 professional career?

25 VENIREPERSON GADBERRY: Yes.

1 MS. RASMUSSEN: Not on a personal end?

2 VENIREPERSON GADBERRY: No.

3 MS. RASMUSSEN: Anyone else? Is there
4 anyone that thinks after hearing the charges that thinks: I
5 don't know if I can listen to evidence in a case like this and
6 be fair and impartial? I see no hands.

7 All right. The State must prove their case beyond a
8 reasonable doubt. Each claim that is required to be proved
9 for the charge must be proved beyond a reasonable doubt. When
10 we talk about claims, I'm not trying to make light of this
11 whatsoever, but I am a terrible cook, so I always go with the
12 example of my favorite meal, which is a peanut butter and
13 jelly sandwich. Okay.

14 I'm going to ask you, Ms. Chatterton, what are the
15 ingredients of a peanut butter and jelly sandwich?

16 VENIREPERSON CHATTERTON: Bread, peanut
17 butter and jelly.

18 MS. RASMUSSEN: Bread, peanut butter and
19 jelly. Does it matter whether you put it on with a spoon or a
20 knife?

21 VENIREPERSON CHATTERTON: No.

22 MS. RASMUSSEN: No. Just the ingredients
23 peanut butter and jelly. Just like the ingredients in a
24 recipe, that's what the claims are, and you must look at each
25 one and determine if the State has proven each of those beyond

1 a reasonable doubt.

2 Now, who here likes CSI? All right. Mr. Dewey, do you
3 like it?

4 VENIREPERSON DEWEY: Yes.

5 MS. RASMUSSEN: Do you expect to see DNA
6 in a case like this?

7 VENIREPERSON DEWEY: Perhaps.

8 MS. RASMUSSEN: If I put my hand on this
9 podium and lift it up, what will I have left behind there?

10 VENIREPERSON DEWEY: Fingerprints.

11 MS. RASMUSSEN: How long are they going to
12 stay there?

13 VENIREPERSON DEWEY: I have no idea.

14 MS. RASMUSSEN: Forever and ever on CSI;
15 right? At least a hundred years?

16 VENIREPERSON DEWEY: 20 years.

17 MS. RASMUSSEN: At least. All right. Why
18 might you not see DNA in a case like this?

19 MR. DEWEY: I don't know. It's not
20 available?

21 MS. RASMUSSEN: All right. I'm going to
22 call on you, Mr. Gadberry, former investigator, why might we
23 not expect to see DNA in this case?

24 VENIREPERSON GADBERRY: It could be erased,
25 or maybe there wasn't none left.

1 MS. RASMUSSEN: All right. When someone
2 touches something or, you know, puts their hand someplace, do
3 you always leave DNA behind?

4 VENIREPERSON GADBERRY: No.

5 MS. RASMUSSEN: Now, I'll tell you you
6 aren't going to see DNA evidence in this case. Unfortunately,
7 it's not as cool as CSI or entertaining, but I want to talk to
8 you about what other type of evidence you might see. And I'm
9 going to call on you, Ms. Hentchel. What other types of
10 evidence might you expect to see?

11 VENIREPERSON HENTCHEL: I know they said
12 that they have witnesses. So hearing their statements, I
13 would expect to hear.

14 MS. RASMUSSEN: Testimony?

15 VENIREPERSON HENTCHEL: Testimony.

16 MS. RASMUSSEN: Okay. What witnesses say
17 is evidence, so testimony. We all agree that you can listen
18 to the testimony of witnesses and consider what they say as
19 evidence? I'm seeing lots of nods. Okay.

20 Now you're going to hear from a lot of witnesses from the
21 State. Maybe even some from the defense. It is for you to
22 judge the credibility of witnesses.

23 Now, I'm going to call on you, Mr. Porter. You came in
24 through security up front; right?

25 VENIREPERSON PORTER: Yes.

1 MS. RASMUSSEN: It's kind of worse than the
2 airport?

3 VENIREPERSON PORTER: Close.

4 MS. RASMUSSEN: They made you remove your
5 belt, shoes, you had to throw them on a conveyor belt?

6 VENIREPERSON PORTER: Yes.

7 MS. RASMUSSEN: Did any deputies tell you,
8 Mr. Porter, you needed to put your common sense and leave it
9 on the belt?

10 VENIREPERSON PORTER: No.

11 MS. RASMUSSEN: You got to bring that in
12 with you; right?

13 VENIREPERSON PORTER: Yes.

14 MS. RASMUSSEN: You will get an instruction
15 that says: You can use your common sense when you go back in
16 that room and deliberate. Do you all agree that you can do
17 that? I'm seeing everyone nodding their heads.

18 So let's talk about when you're judging credibility. I
19 want to know some things you look for when you're judging
20 credibility of someone. Mr. Helfand, am I saying your name
21 correctly?

22 VENIREPERSON HELFAND: Yes.

23 MS. RASMUSSEN: What sort of things would
24 you look for in determining someone's credibility?

25 VENIREPERSON HELFAND: Character.

1 MS. RASMUSSEN: Okay. What about you, Mr.
2 Schulte?
3 VENIREPERSON HELFAND: I would agree,
4 character. The demeanor a little bit.
5 MS. RASMUSSEN: What about you, Ms.
6 Kretchmer?
7 VENIREPERSON KRETCHMER: Definitely
8 character, demeanor, same thing.
9 MS. RASMUSSEN: Mr. Gadberry, you spent
10 years in investigation and talking with a witness?
11 VENIREPERSON GADBERRY: Yes.
12 MS. RASMUSSEN: What sort of things did you
13 look for when you were trying to determine someone's
14 credibility?
15 VENIREPERSON GADBERRY: I look at a lot of
16 things, body language, demeanor as they said. How they
17 project themselves.
18 MS. RASMUSSEN: What about when someone
19 told the story multiple times. Consistency versus
20 inconsistency. I see lots of head nods. Is that important?
21 Mr. Gadberry, you're smiling so I feel like you're ready to
22 say something.
23 VENIREPERSON GADBERRY: It depends when we
24 hear the inconsistencies, or would we hear what they are
25 saying on the stand at this time.

1 MS. RASMUSSEN: You might hear about
2 statements people made in the past. Would it be important to
3 look at those statements they made?

4 VENIREPERSON GADBERRY: Yes.

5 MS. RASMUSSEN: What about motivations?
6 What do you think about that, Mr. Gadberry?

7 VENIREPERSON GADBERRY: Well, I think there
8 should be some type of motivation.

9 MS. RASMUSSEN: So basically, why someone
10 says what they say?

11 VENIREPERSON GADBERRY: Yeah, yes.

12 MS. RASMUSSEN: Mr. Chatterton, what would
13 you like to see, or I guess I should you say, what sort of
14 things would you look for?

15 VENIREPERSON CHATTERTON: I would say body
16 language.

17 MS. RASMUSSEN: Okay. Does anyone here
18 have any other ideas? I see no hands. You guys are quiet,
19 and I'm going to be done in about five minutes if no one
20 speaks up, which is probably what you want. All right. I
21 want to talk to you about the claims that the State must prove
22 in this case.

23 One of the claims the State must prove is intent. Ms.
24 Brockmeier, would you expect me to be able to put an exhibit
25 sticker on something and say: This shows intent?

1 VENIREPERSON CHATTERTON: Probably not.
2 MS. RASMUSSEN: Intent is not a physical
3 item, is it?
4 VENIREPERSON CHATTERTON: I would think
5 not.
6 MS. RASMUSSEN: Okay. Let me give you a
7 little example. Let's say I say I'm going to turn off the
8 lights, and I start walking back there. What's my intent when
9 I get back by that door?
10 VENIREPERSON CHATTERTON: I would assume to
11 turn off the lights because that's what you said, you made
12 motions to that effect.
13 MS. RASMUSSEN: Exactly. Let me make it a
14 little bit tougher for you, Ms. Brockmeier.
15 Let's say that I mention that I have a tendency to get
16 bad migraines, and that the light is bothering me this
17 morning, and I start walking back there. What do I intend to
18 do when I get back there?
19 VENIREPERSON CHATTERTON: I would assume to
20 shut off the lights.
21 MS. RASMUSSEN: You say, "I would assume."
22 I didn't tell you I was going to shut off the lights, did I?
23 VENIREPERSON CHATTERTON: Right.
24 MS. RASMUSSEN: But you were able to
25 determine what my intent was by my actions, by other things I

1 said; is that right?

2 VENIREPERSON CHATTERTON: Yeah. I mean

3 your motion toward the door, and the fact that you stated that

4 there might be some cause to shut off the light.

5 MS. RASMUSSEN: Okay. I've got just a few

6 more things I want to ask. Does anyone here belong to the

7 Church of the Resurrection? Anyone know anyone closely

8 associated with that church? Okay. Mr. Porter?

9 VENIREPERSON PORTER: I've done engineering

10 for the church on different occasions. I've worked with a lot

11 of staff that works for the church.

12 MS. RASMUSSEN: Okay.

13 VENIREPERSON PORTER: If that counts.

14 MS. RASMUSSEN: It might. Let me ask you

15 if you know a few people. Randy Meyer?

16 VENIREPERSON PORTER: No.

17 MS. RASMUSSEN: Nancy Brown?

18 VENIREPERSON PORTER: No.

19 MS. RASMUSSEN: Lee Jost?

20 VENIREPERSON PORTER: No.

21 MS. RASMUSSEN: Okay. The next question

22 is, have any of you been involved with Boy Scouts, Girl Scouts

23 of America? Okay. I'm seeing lots of hands. I will tell

24 you, in this case there will be some witnesses who have been

25 involved with scouting. I want to just ask you all a general

1 question if you raised your hand. Are there any of you that
2 raised your hands because you're associated with scouts that
3 will tend to find those people more credible or less credible
4 just because they are involved with scouting? I'm seeing no
5 hands. Mr. Dewey?

6 VENIREPERSON DEWEY: Just from my
7 experience in scouting, most of the people I've ever dealt
8 with, I wouldn't say all of them, but they all seem to be very
9 credible, being very friendly, nice people.

10 MS. RASMUSSEN: Okay.

11 VENIREPERSON DEWEY: For whatever that's
12 worth, backing up one question.

13 MS. RASMUSSEN: Yes.

14 VENIREPERSON DEWEY: I know a person named
15 Nancy Brown. I don't know if she's involved in that church or
16 not.

17 MS. RASMUSSEN: How do you know Ms. Brown?

18 VENIREPERSON DEWEY: If it's the same one,
19 she was a former Kansas district or whatever it was, she was a
20 representative.

21 MS. RASMUSSEN: Uh-huh.

22 VENIREPERSON DEWEY: I was on her campaign
23 in trying to help her get elected.

24 MS. RASMUSSEN: I will tell you that that
25 is Ms. Brown who may be a witness in this matter. Is there

1 anything about your relationship with her that would tend to
2 bias you in any way?

3 VENIREPERSON DEWEY: Other than friendly, I
4 don't know it would make me think that she was truthful or not
5 truthful. I do know that I've known her a long time.

6 MS. RASMUSSEN: About how long have you
7 known her?

8 VENIREPERSON DEWEY: Twenty years.

9 MS. RASMUSSEN: Moving on, one thing you
10 will get an instruction on is that your job in this case is
11 just to evaluate the evidence and determine whether the
12 defendant is guilty or not guilty. You cannot think about the
13 punishment at all when coming to that conclusion. Are you all
14 willing to do that, set aside any thoughts of punishment or
15 repercussions? All right. Mr. Gadberry, are you willing to
16 do that?

17 VENIREPERSON GADBERRY: Yes, I can do that,
18 but normally in the event that it goes the wrong way, I know
19 what the punishment would be normally.

20 MS. RASMUSSEN: Okay. Can you put all of
21 that aside, all your knowledge of this system aside, when
22 arriving at a verdict?

23 VENIREPERSON GADBERRY: I hope so.

24 MS. RASMUSSEN: Now, I just heard you say,
25 "in the event it goes the wrong way, I know what punishment

1 would be."

2 VENIREPERSON GADBERRY: Yes.

3 MS. RASMUSSEN: What do you mean by, "the

4 wrong way"?

5 VENIREPERSON GADBERRY: For the defendant.

6 MS. RASMUSSEN: Would you still be able to

7 find him guilty if all the evidence came in and we proved each

8 claim beyond a reasonable doubt?

9 VENIREPERSON GADBERRY: I think so.

10 MS. RASMUSSEN: You think so?

11 VENIREPERSON GADBERRY: I guess so.

12 MS. RASMUSSEN: You would agree that you

13 have to follow the law?

14 VENIREPERSON GADBERRY: There's a lot of

15 prejudice that I carry with me based upon thirteen years.

16 MS. RASMUSSEN: That's fine. We all have

17 from our experience in life, but what I want to do is make

18 sure that both the defendant and the State get a fair trial.

19 Is that something you think you can do?

20 VENIREPERSON GADBERRY: Yes.

21 MS. RASMUSSEN: Is that something you can

22 do?

23 VENIREPERSON GADBERRY: I think so, yes.

24 MS. RASMUSSEN: Finally, it's an incredible

25 responsibility to sit in the judgment of another. Is there

1 anyone here that for any reasons, moral, religious or
2 otherwise thinks: I just can't do this. I just can't decide
3 whether he's guilty or not guilty. I see no hands.

4 Finally, it's time for the catch-all question. Is there
5 anything I haven't brought up here today, or you didn't answer
6 earlier, but now looking back on it think maybe you should
7 have said something? Mr. Schulte?

8 VENIREPERSON SCHULTE: I should say, I'm a
9 school teacher, and working with children I can see -- I could
10 see that I have a little bit of difficulty just basing that I
11 work with children, and I have a lot of respect for kids, and
12 I want their best interest.

13 MS. RASMUSSEN: Okay. And you will hear
14 from some witnesses who have grown up over some time, so now
15 they are a little bit older, but they were children back when
16 things were said to have occurred. Would you lend more or
17 less credibility to them one way or another to their
18 testimony?

19 VENIREPERSON SCHULTE: I don't think so.

20 MS. RASMUSSEN: More?

21 VENIREPERSON SCHULTE: I don't know that I
22 would.

23 MS. RASMUSSEN: So you think you could put
24 that aside and your close relationship with kids and just look
25 at what they say and judge based upon the evidence?

1 VENIREPERSON SCHULTE: I think so.

2 MS. RASMUSSEN: Okay. Sorry, Ms.

3 Kretchmer?

4 VENIREPERSON KRETCHMER: I have two things.
5 I'm a teacher also, a retired teacher, elementary teacher.
6 And the second thing, my husband works for the District Court.
7 He is the director of Domestic Services. So I just wanted you
8 to know that.

9 MS. RASMUSSEN: I did see that on your
10 form, and I didn't recognize his name as knowing him
11 personally. Is there anything about your relationship with
12 your husband, the things you guys talk about at night or your
13 job as a school teacher that you think would make you biased
14 to where you couldn't sit on this jury and listen fairly and
15 impartially to the questions, the testimony?

16 VENIREPERSON KRETCHMER: No.

17 MS. RASMUSSEN: Your Honor, at this time I
18 pass the panel for cause.

19 THE COURT: Thank you, Ms. Rasmussen. Mr.
20 Regan, you may inquire.

21 MR. REGAN: Thank you. Good morning,
22 counsel for the State, ladies and gentlemen, good morning. My
23 name is Kevin Regan. Scott Moore and his family have asked me
24 to come out here and defend him against these most serious
25 allegations.

1 I'd like to know if any of you have met me? I've lived
2 out in the Kansas City area for a long time. I grew up out
3 here in Overland Park in Johnson County. I was in the Shawnee
4 Mission School District. I'm a member of Visitation Catholic
5 Church. I'm a Eucharistic minister there. I'm a former
6 assistant district attorney in this building, and I was a
7 former prosecutor for the State over in Missouri. I'm a
8 special federal prosecutor over here in Kansas as well. I've
9 been in private practice for over 25 years. I office in the
10 Crossroads District. Do any of you think that you may have
11 known me or met me along the way?

12 I will be assisted in trial here by Luke Whitworth. He
13 is the young man right here. Luke grew up in the Blue Springs
14 area. His mom and dad are Matt and Jeannie. His family was
15 raised in Blue Springs. Luke attended UMKC, and has been
16 president of his student body over there. His father actually
17 was the sitting United States Attorney, and is now a federal
18 judge over in Jeff City. Do any of you know Mr. Whitworth?
19 If so, please raise your hand.

20 This portion of the jury selection process is kind of an
21 interesting portion of the trial. Usually when we're asking
22 questions of our witnesses, we know what they are going to say
23 and what we are going to say. But when the prosecutor and I
24 get to question you, we don't know what you all are going to
25 say. As my learned opponent has wisely said, it really is

1 not -- the easiest part is not to get six people who want to
2 try the case, but try to identify the ones that will not have
3 trouble being fair and impartial to either side.

4 And sometimes when I'm at the grocery store or the movies
5 and folks will say: Hey, why did you keep me on your jury or
6 why did you exclude me. By law it's just because we have to
7 in the end to get to the final six. I apologize in advance to
8 those that we can't keep.

9 Voir dire is an interesting term. In Latin, it means "to
10 tell the truth." In French, it means "to see and say." In
11 Kansas they call it "voir dire." In Missouri they call it
12 "voir dire." In Oklahoma they call it picking the jury.
13 Basically it's a chance for us to get to know each other a
14 little bit better, and identify the issues that we're going to
15 have in this case and see if anyone has a preconceived notion
16 as to why we can't be fair in this case.

17 Because of the nature of this case, I'm going to have to
18 ask I think these are questions that are sensitive for to me
19 to ask, and I know they will be sensitive to answer. I
20 apologize in advance for them, but we've got to get to the
21 bottom of the issues in the case and make sure to see if we
22 can be fair and impartial.

23 I'd like to tell you a little bit about the facts in this
24 case and see if you know anything about them.

25 The State has charged Mr. Moore with two counts of sexual

1 battery. Generically the facts of this case are that sometime
2 in December 2009 and on May 15th, 2010, my client, Scott
3 Moore, was at home with his wife and children at 15821 Horton
4 Court, Overland Park, Kansas, when a friend of his son's,
5 Nicholas Koch, alleges that Mr. Moore touched him in an
6 inappropriate manner while in the home.

7 In Count II the State alleges that Mr. Moore touched Mr.
8 Koch inappropriately while he was sleeping in the same room as
9 Mr. Moore's son and another family friend, a young boy named
10 Marcus Blanckensee. Mr. Moore has always denied these
11 allegations and has pleaded not guilty to these charges.

12 So do any of you think that you may have heard anything
13 about this case? My client's name is Scott Moore. Please
14 stand up, Scott. Have a seat.

15 Mr. Moore is long time resident of your community. His
16 wife is Sue Moore, who is sitting in the back row there. And
17 they have two kids named Preston and Kirsten, and they live at
18 15821 Horton Court here in Johnson County. Do any of you
19 think you might know Mr. Moore or any members of his family?
20 If so, please raise your hand.

21 Do any of you think you might know Mr. Moore from church?
22 Do any of you attend the Church of the Resurrection? Yes,
23 sir, Mr. Schulte?

24 VENIREPERSON SCHULTE: I did on and off for
25 probably about a year, but I don't think I know him.

1 MR. REGAN: Mr. Moore is the former
2 scoutmaster for Troop 37 in Overland Park, Kansas. Have any
3 of your kids been a member of that troop? If so, raise your
4 hand. I don't see any hands.

5 Are any of you a member of MOCSA, which is the
6 Metropolitan Organization to Counter Sexual Assault, or
7 similar groups in the community? If so, please raise your
8 hand. Do any of you have experience as a law enforcement
9 officer, besides Mr. Gadberry? If so, please raise your hand.

10 Sir, which public defender's office did you work with?

11 VENIREPERSON GADBERRY: Over in
12 Harrisonville, Cass County. It covered five counties in
13 Johnson County, Missouri, Cass County, Henry County, Bates
14 County.

15 MR. REGAN: Did you work against Teresa
16 Hensley down there in Cass County?

17 VENIREPERSON GADBERRY: I didn't work with
18 her.

19 MR. REGAN: You worked against her because
20 she was the prosecutor?

21 VENIREPERSON GADBERRY: She was the
22 prosecutor.

23 MR. REGAN: Did you ever appear in front of
24 Bill Collins' court?

25 VENIREPERSON GADBERRY: Oh, yes.

1 MR. REGAN: Bill is an old friend of mine.
2 We were young prosecutor's together. Did you ever have to
3 testify in his court?
4 VENIREPERSON GADBERRY: No, I worked in
5 his court as a legal assistant.
6 MR. REGAN: Did you ever have to testify in
7 criminal trials?
8 VENIREPERSON GADBERRY: Yes.
9 MR. REGAN: Were you cross-examined by the
10 prosecutor?
11 VENIREPERSON GADBERRY: Yes.
12 MR. REGAN: Did you handle the exchange of
13 discovery -- for the rest of the jury's benefit, written
14 discovery that went back and forth from the prosecutor's
15 office and your client?
16 VENIREPERSON GADBERRY: Yes.
17 MR. REGAN: Did you visit clients in the
18 county jail down there?
19 VENIREPERSON GADBERRY: Yes.
20 MR. REGAN: And help trial lawyers get
21 ready for trial down there?
22 VENIREPERSON GADBERRY: Correct.
23 MR. REGAN: And then you anxiously await
24 the verdict while the jury was deliberating?
25 VENIREPERSON GADBERRY: Yes.

1 MR. REGAN: And whatever the consequences
2 were?
3 VENIREPERSON GADBERRY: Yes.
4 MR. REGAN: Did you study constitutional
5 law in school?
6 VENIREPERSON GADBERRY: I have a masters in
7 criminal justice management.
8 MR. REGAN: I imagine you had all kinds of
9 behind-the-scene experience with what goes on in each trial,
10 things that most people don't get to see, filing motions,
11 fighting about discovery, investigating witnesses'
12 backgrounds, trying to get the best case presentable for a
13 jury?
14 VENIREPERSON GADBERRY: Correct.
15 MR. REGAN: And the thrill of victory and
16 agony of defeat, you saw both of those probably as well?
17 VENIREPERSON GADBERRY: Yes.
18 MR. REGAN: And I think you've said to the
19 prosecutor that you can be fair and impartial in this case,
20 even with your special experience?
21 VENIREPERSON GADBERRY: I think so.
22 MR. REGAN: In Missouri we let lawyers sit
23 as jurors, and I've been on a jury myself, so I have
24 experience on both sides in this, and it is allowable.
25 Do any of you have friends or relatives in law

1 enforcement? Friends that are police officers or sheriff's
2 deputies. Let me start in the back. Mr. Schulte?
3 VENIREPERSON SCHULTE: I have a neighbor of
4 mine that is a detective in Olathe.
5 MR. REGAN: In Olathe?
6 VENIREPERSON SCHULTE: Yes.
7 MR. REGAN: Mr. Schmidgall?
8 VENIREPERSON SCHMIDGALL: Yes.
9 MR. REGAN: Am I saying your name right?
10 VENIREPERSON SCHMIDGALL: Uh-huh. I have
11 an uncle who works at a jail up in Minnesota.
12 MR. REGAN: Yes, ma'am, on the end. Ms.
13 Hentchel?
14 VENIREPERSON HENTCHEL: I have a father who
15 is a judge in Michigan.
16 MR. REGAN: In Michigan?
17 VENIREPERSON HENTCHEL: Yes.
18 MR. REGAN: Okay. Yes, sir, Mr. Gadberry?
19 VENIREPERSON GADBERRY: My wife is a deputy
20 sheriff here in Johnson County for ten years.
21 MR. REGAN: Is she currently with the
22 department?
23 VENIREPERSON GADBERRY: No.
24 MR. REGAN: She was?
25 VENIREPERSON GADBERRY: She was.

1 MR. REGAN: I bet you guys have interesting
2 discussions at night where she's on one side sometimes and
3 you're on the other?

4 VENIREPERSON GADBERRY: It was just work.

5 MR. REGAN: Here's what I'm getting at
6 about that. It's not uncommon to have folks on the jury that
7 have family in law enforcement. Is there any of you that
8 would respond that would automatically believe something just
9 because they wear a badge and gun? I suspect they have some
10 issues with what an officer says because that's what he does.
11 Does anyone automatically believe an officer's testimony
12 because that's what they do for a living?

13 Let me flip that on the other side. Does anyone who has
14 had a bad experience with a law enforcement officer to the
15 point where they would disbelieve someone because of what they
16 do for a living? Mr. Gadberry?

17 VENIREPERSON GADBERRY: Yes. With law
18 enforcement officers not having the highest integrity.

19 MR. REGAN: With one or more officers?

20 VENIREPERSON GADBERRY: Yes.

21 MR. REGAN: In the course of your career
22 with the public defender's office?

23 VENIREPERSON GADBERRY: Yes.

24 MR. REGAN: Because of that, did you form
25 an opinion about those particular officers?

1 VENIREPERSON GADBERRY: Those officers,
2 yes.

3 MR. REGAN: But you don't automatically
4 dislike or disregard any officer; right?

5 VENIREPERSON GADBERRY: No. I was in law
6 enforcement for 21 years, so yes.

7 MR. REGAN: So you could put aside whatever
8 Cass County officers might have done to cause your feelings
9 and let this Overland Park officer have a chance to gain or
10 lose your credibility depending on how he says what he says
11 and how he says it?

12 VENIREPERSON GADBERRY: Yes.

13 MR. REGAN: Anyone else?

14 VENIREPERSON HELFAND: My father is in law
15 enforcement.

16 MR. REGAN: Your father Richard Helfand?

17 VENIREPERSON HELFAND: Yes.

18 MR. REGAN: He's a friend of mine. He's a
19 lawyer in the police department, and a good lawyer for the
20 police department.

21 VENIREPERSON HELFAND: Yes.

22 MR. REGAN: Would you tend to believe an
23 officer because that's what he or she does in their
24 occupation?

25 VENIREPERSON HELFAND: No.

1 MR. REGAN: Anybody else? Have any of you
2 been the victim of sexual assault? This is sensitive stuff.
3 I apologize in advance for any of you who have close friends
4 or a family member or have a close friend, family member whose
5 been a victim of sexual assault?

6 Has anyone witnessed sexual assault?

7 Do any of you have any serious health issues that makes
8 it difficult or impossible for you to sit through a two- or
9 three-day trial? And the prosecutor touched on it, and I want
10 to narrow it down, do any of you have any moral or religious
11 principles that would make it difficult or impossible to
12 render a judgment in a criminal case? Do any of you all have
13 experiences with a probation or a parole officer? If so,
14 please raise your hands.

15 Do any of you have employment experience with the Kansas
16 Department of Probation and Parole, Johnson County Court
17 Services or Kansas Department of Corrections?

18 On the end, Ms. Hentchel?

19 VENIREPERSON HENTCHEL: Yeah, with my job
20 at Kansas TLC, some of my kids have probation officers, and
21 I've had to take them to court before for some of the charges.

22 MR. REGAN: Thank you. Anyone else? Are
23 any of you aware or acquainted with sex offender registration
24 laws in the State of Kansas? Yes, sir, in back, Mr. Porter?

25 VENIREPERSON PORTER: Yes.

1 MR. REGAN: What's the nature of your
2 experience?

3 VENIREPERSON PORTER: My wife was a
4 probation parole officer in the State of Missouri for several
5 years, and she likes to look at the Internet and see who our
6 neighbors are and share that information with me, so yeah.

7 MR. REGAN: That's my next question, you're
8 going to hear from both sides of this case. From teenage
9 kids, and I have teenage kids myself who have gotten a little
10 older. And one night I saw my daughter playing on the
11 computer. She said, "I'm looking for any sex offenders in the
12 neighborhood." There's a way you can get on the computer and
13 do that. Have any of you looked up on the computer to see if
14 there are any sex offenders in the neighborhood? If so, raise
15 your hand? Mr. Schulte, Mr. Gadberry, Ms. Hentchel. Am I
16 pronouncing your name correctly?

17 VENIREPERSON HENTCHEL: Yes.

18 MR. REGAN: My name is Regan. Some people
19 say Regan, but feel free to pronounce my name. How many of
20 you are members of a neighborhood watch group, block captain
21 or something like that? If so, please raise your hand. Has
22 anyone on the panel attended counseling for sexual misconduct
23 committed against you? Have that experience in your family
24 with a loved one? Have any of you been a victim of sexual
25 misconduct at home, workplace or in the community? Have any